Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, December 12, 2022 immediately following the General Government Committee Meeting

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		J. Dies
		S. Lee
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 2:51 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of September 26, 2022;
- Special Meeting of November 8, 2022;
- Inaugural Meeting of November 28, 2022; and
- Special Meeting of November 29, 2022.

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

5. Delegations and Presentations

None

6. Correspondence

Mayor Collier reviewed the information contained in Item 6.3 (The Regional Municipality of Durham – Envision Durham – Growth Management Study – Phase 2 – Draft Settlement Area Boundary Expansions and Area Municipal Growth Allocations) and noted that the proposed settlement area boundary expansions include all northeast Pickering.

Moved by: J. Dies
Seconded by: S. Lee

That the report dated December 12, 2022 containing Items of Correspondence be received for information.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, December 5, 2022

Moved by: J. Dies
Seconded by: N. Henry

That the Community Affairs & Planning Committee Report dated December 5, 2022, be adopted.

CARRIED

7.2. General Government Committee Report

7.2.2 General Government Committee, December 12, 2022

Moved by: L. Bower
Seconded by: S. Lee

That the Resolutions of the General Government Committee Meeting dated December 12, 2022, be ratified.

CARRIED

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

None

8. Regional Councillors' Report

Regional Council Members reviewed appointments and nominations to various boards/committees at the Region for the 2022-2026 Term of Council.

Moved by: M. Crawford
Seconded by: J. Dies

That the Regional Councillors' Reports of December 12, 2022 be received for information.

CARRIED

9. Business Arising from Notice of Motion

9.1 Council Participation in OMERS Pension Plan

Regional Councillor Lee and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding financial impacts should a Councillor opt out of the OMERS Plan, Year's Maximum Pensionable Earnings (YMPE) limits, and town contributions. Samantha Paterson, GR & Strategic Initiatives Coordinator, responded to questions from Council Members.

Moved by: S. Lee
Seconded by: M. Crawford

WHEREAS the Ontario Municipal Employees Retirement System (OMERS) is a defined benefit pension plan and provides a guaranteed stream of income in retirement;

AND WHEREAS the OMERS Plan pension can grow into an important financial asset and play a key role in financial and retirement security;

AND WHEREAS both the employee and employer contribute equal amounts to the OMERS plan, increasing the total contribution being invested;

AND WHEREAS the Council Members of Whitby, Clarington and Uxbridge participate in the OMERS program and the Region of Durham provides the option to do so for Members of Regional Council;

AND WHEREAS the Town of Ajax currently contributes 10% of a Council Member's base salary to a personal Registered Retirement Savings Plan (RRSP) as a pension compensation benefit;

AND WHEREAS if members of Council were enrolled in the OMERS plan, the Town would contribute 9% of earnings up to the Year's Maximum Pensionable Earnings (YMPE) earnings limit and 14.6% of earnings over the YMPE limit, with Members being required to match the Town's contributions;

AND WHEREAS existing council members can individually choose to join OMERS at the effective date of enrolment and members who decline can join OMERS at any point in the future provided they continue to be eligible;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Manager of HR Services be directed to contact OMERS indicating Council's intent to participate in the OMERS Plan and obtain the necessary information and documentation to commence the process;

2. Staff be directed to provide the option to replace Council's Registered Retirement Savings Plan (RRSP) benefit with participation in the OMERS Plan; and

3. The Town continue to provide the Registered Retirement Savings Plan (RRSP) benefit to current members of Council who opt out of the OMERS Plan.

Amendment

Moved by: L. Bower
Seconded by: N. Henry

That recommendation #3 be amended to read as follows:

> The Town continue to provide, for those members who opt out of the OMERS Plan, the Registered Retirement Savings Plan (RRSP) 10% benefit to members of Council and that the Mayor receive 9% of earnings up to the YMPE earnings limit and 14.6% of earnings over the YMPE limit.

CARRIED

Main Motion as Amended

Moved by: S. Lee
Seconded by: M. Crawford

WHEREAS the Ontario Municipal Employees Retirement System (OMERS) is a defined benefit pension plan and provides a guaranteed stream of income in retirement;

AND WHEREAS the OMERS Plan pension can grow into an important financial asset and play a key role in financial and retirement security;

AND WHEREAS both the employee and employer contribute equal amounts to the OMERS plan, increasing the total contribution being invested;

AND WHEREAS the Council Members of Whitby, Clarington and Uxbridge participate in the OMERS program and the Region of Durham provides the option to do so for Members of Regional Council;

AND WHEREAS the Town of Ajax currently contributes 10% of a Council Member's base salary to a personal Registered Retirement Savings Plan (RRSP) as a pension compensation benefit;

AND WHEREAS if members of Council were enrolled in the OMERS plan, the Town would contribute 9% of earnings up to the Year's Maximum Pensionable Earnings (YMPE) earnings limit and 14.6% of earnings over the YMPE limit, with Members being required to match the Town's contributions;

AND WHEREAS existing council members can individually choose to join OMERS at the effective date of enrolment and members who decline can join OMERS at any point in the future provided they continue to be eligible;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Manager of HR Services be directed to contact OMERS indicating Council's intent to participate in the OMERS Plan and obtain the necessary information and documentation to commence the process;

2. Staff be directed to provide the option to replace Council's Registered Retirement Savings Plan (RRSP) benefit with participation in the OMERS Plan; and

3. The Town continue to provide, for those members who opt out of the OMERS Plan, the Registered Retirement Savings Plan (RRSP) 10% benefit to members of Council and that the Mayor receive 9% of earnings up to the YMPE earnings limit and 14.6% of earnings over the YMPE limit.

CARRIED

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Councill Bower, Mayor Collier

Opposed: None

9.2 **Harmonizing Regional Councillor Remuneration**

Regional Councillor Crawford and Regional Councillor Lee introduced the motion and reviewed its contents. Mayor Collier noted that the motion is administrative in nature and has no impact on the taxpayer.

Moved by: M. Crawford
Seconded by: S. Lee

WHEREAS Ajax regional councillors are paid for their local duties by the Town of Ajax and for their Regional Council duties by the Regional Municipality of Durham;

AND WHEREAS by receiving separate payments, regional councillors may be subject to higher taxation deductions on both Canadian Pension Plan and Employment Insurance contributions, which are subject to maximum annual contribution ceilings;

AND WHEREAS By-law Number 42-2022 of the Regional Municipality of Durham gives municipalities the opportunity to enter into a joint services agreement with the Region for the harmonization of councillors' remuneration and benefits. Under the agreement, the Region reimburses the municipality for the cost of providing remuneration and benefits on a quarterly basis;

AND WHEREAS Whitby, Clarington, and Uxbridge currently participate in payment harmonization with the Region;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax staff implement all measures necessary to administer the harmonization of the Regional Remuneration in accordance with By-law Number 42-2022 of the Regional Municipality of Durham.

CARRIED

9.3 **Residential Parking Permit Program**

Regional Councillor Lee and Councillor Henry introduced the motion and reviewed its contents. Council Members asked if the March 2023 timeline is attainable. Geoff Romanowski, Director of Planning & Development Services, responded to the question from Council Members.

Moved by: S. Lee
Seconded by: N. Henry

WHEREAS a Residential Parking Permit (RPP) Feasibility Study was completed in 2008 to examine the feasibility of implementing a RPP program in the Town of Ajax;

AND WHEREAS the Council of the day did not vote in favour of implementing the RPP program on the recommendation of staff at the time;

AND WHEREAS the makeup and built form of our community has changed dramatically since 2008, including new developments that have been built and are planned for the future, and an increase in multi-family homes with multiple vehicles requiring increased parking;

AND WHEREAS some residents of Ajax have expressed concerns to members of Council regarding a perceived lack of residential parking supply, particularly in Ajax's newer communities;

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to present a report to Council or the appropriate Standing Committee on the cost, timeline, scope and potential funding sources for an updated Town-wide Residential Parking Permit (RPP) Study by no later than April 2023; and

2. The RPP Study shall include, at minimum, an examination of existing on-street parking supply, potential scope of the program, estimated costs and cost recovery mechanisms for the Town, integration with the Town's existing on-street parking programs and by-laws, estimated participation rates of residents and visitors, and estimated timelines for development and implementation.

CARRIED

10. By-laws

Moved by: L. Bower
Seconded by: J. Dies

That By-law numbers 70-2022 to 77-2022 and 80-2022 to 84-2022 be read a first, second and third time and passed.

CARRIED

11. By-laws Imposed by the Ontario Land Tribunal

Council Members noted that By-law numbers 78-2022 and 79-2022 have been imposed by way of Order by the Ontario Land Tribunal.

Council Members asked questions regarding changes to agenda structure and appeal rights. Nicole Cooper, Director of Legislative & Information Services/Clerk and Sean McCullough, Supervisor Policy, Planning & Research, responded to questions from Council Members.

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members wished everyone a safe and happy holiday season. Mayor Collier thanked members of Council and staff for their hard work and dedication.

14. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 85-2022 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on December 12, 2022, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: N. Henry
Seconded by: M. Crawford

That the December 12, 2022 meeting of the Council of the Town of Ajax be adjourned (3:34 p.m.)

CARRIED

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Mayor

_____
D-Clerk